

## 24NNCV06731 24NNCV06731

County: los-angeles

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Case Number: 24NNCV06731 Hearing Date: September 18, 2026 Dept: D

### TENTATIVE RULING

Calendar: 7

Date: September 18, 2026

Case No: 24NNCV06731 Trial Date: n/a

Case Name: Lefkowitz v. Dulat, et al.

### MOTIONS FOR ATTORNEY FEES

[CCP § 425.16 subd. (c)(1)]

Moving Party: Defendant, Lawrence Lishner

Defendant, Pierre Mazenod (erroneously sued and served as Pierre Dulat)

Responding Party: Plaintiff, Gary Lefkowitz [Unopposed]

### RELIEF REQUESTED:

Grant attorneys' fees and costs for defendant Lawrence Lishner in the amount of \$28,795.21.

Grant attorneys' fees and costs for defendant Pierre Mazenod in the amount of \$17,059.99.

CAUSES OF ACTION: from Complaint

- 1) Fraud
- 2) Forcible Detainer
- 3) Trespass
- 4) IIED
- 5) Violation of the Unruh Act
- 6) Breach of Contract
- 7) ADA Violations
- 8) Disability Laws
- 9) Rehabilitation Act
- 10) Elder Abuse
- 11) Violation of B&P 17200
- 12) Nuisance

#### SUMMARY OF FACTS:

Plaintiff Gary Lefkowitz alleges that he has resided at an apartment unit on Arch Drive in Los Angeles since 2017. The complaint alleges that defendant Pierre Joseph Dulat owns the subject property and had MRI Realty Management as the property manager. The complaint alleges that MRI Realty Management is not a corporation and that it is believed that no California real estate broker runs MRI Realty Management. Defendants Palma Garcia and Sergio Garcia are alleged to be real estate agents, but not brokers, who run MRI Realty Management, when they are not authorized to do so.

Defendant Laurence H. Lishner is alleged to be a member of the California State Bar who represents defendant 4235 Arch Dr. GP, which is not a general partnership as it has never filed a notice of fictitious name with the County of Los Angeles.

The complaint alleges that an unlawful detainer was filed on July 29, 2024 in Pasadena Superior Court, Case No. 24 PDUD02677 on behalf of 4235 Arch Dr. GP by MRI Property Management, which complaint states that plaintiff in the unlawful detainer action is a partnership, when nothing is on file for this entity, and that as a result 4235 Arch Dr. GP by MRI Realty Management is forbidden to use the courts for an entity that does not exist.

Plaintiff also alleges that although the complaint states the plaintiff was served with a 3-day notice, he was not served with a 3-day notice and that the alleged 3-day notice lists the improper amount of rent. The complaint alleges that defendant Lishner signed the complaint and defendant Palma Garcia declared under penalty of perjury that the complaint was true and correct, when they both knew that 4235 Arch Dr. GP by MRI Property Management was a non-existent entity, which was a fraud on

the court and upon plaintiff.

It is also alleged that Lishner obtained a default judgment but never stated to the court that service had not been made, and that thereafter defendants Dulat, Lishner, Palma Garcia, Sergio Garcia sought relief from the Los Angeles County Sheriff's Department when they knew that the Sheriff's Department cannot enforce a judgment for an entity that does not exist. Defendants, along with Brad from AllStates had the Los Angeles Police Department come onto the property and evidently saw a notice that plaintiff had placed at the entry of the apartment that plaintiff was legally occupying the property because the entity named as plaintiff in the UD action did not exist. Plaintiff alleges that when questioned by the police officers about the notice, defendants lied to the officers about 4235 Arch Dr. GP by MRI Property Management.

The complaint alleges that defendants illegally had plaintiff forcibly detained from his apartment, trespassed onto his property and intentionally caused him emotional distress.

The complaint also alleges that during the Covid-19 pandemic plaintiff in compliance with the laws paid 25% of the rent and applied for a grant of funds, and that defendant Dulat was upset that it took so long to get the money, and when his son found out about something which had occurred in 1995, the son demanded that Palma Garcia evict plaintiff, which constituted discrimination against plaintiff for conduct disclosed to Palma Garcia prior to entering into the lease dealing with Housing.

There are also allegations that Dulat and the property management defendants violated the terms of the agreement with plaintiff by permitting gate locks to remain broken, so that people could enter the garage and damage and steal cars, and that there were periods when there was no heat, or no air conditioning, or no smoke detector. Plaintiff also alleges that since February of 2024, plaintiff has been in the hospital for medical needs and has lived in three skilled nursing homes, and that defendants have taken advantage of plaintiff's illness.

The complaint seeks damages in excess of \$24,000.00, the return of rent from September of 2017 to the present as 4235 Arch Dr. GP by MRI Property Management did not exist, in the sum of \$164,000, treble damages of \$492,000 for a total of \$656,000 in damages, and requests that the prior UD be deemed ineffective and void.

On February 27, 2026, the Court granted defendant Lawrence Lishner's and defendants Pierre Mazenod, Palma Garcia, and Sergio Garcia's Special Motions to Strike (Anti-SLAPP). The Court found that the defendants were the prevailing defendants on the motions and are entitled under CCP section 425.16 (c)(1) to recover attorney's fees and costs, with the amount to be determined by a noticed motion.

#### ANALYSIS:

Pursuant to CCP section 425.16 subdivision (c)(1), "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (See also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1141-1142.) Parties may seek attorney fees and costs in connection with a special motion to strike (1) in the moving papers, (2) in a subsequently filed motion, or (3) as part of a cost memorandum. (*Melbostad v. Fisher* (2008) 165 Cal.App.4th 987, 992.) The moving party has the burden of proof in a motion for attorney's fees. (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1020.) The successful party is also entitled to fees incurred in filing the motion for anti-SLAPP fees, also referred to as "fees on fees." (*Ketchum*, supra, 24 Cal.4th at p. 1141 [in anti-SLAPP, CCP § 425.16 context].)

#### Entitlement to Attorney's Fees

It is undisputed that Lishner and Mazenod are the prevailing parties on the Anti-SLAPP Motions and are thus entitled to attorney fees.

#### Reasonableness of Fees

In determining whether the attorneys' fees requested under Section 425.16 are "reasonable," the Court "may and should consider the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded . . . [,] the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed." (Church of Scientology v. Wollersheim (1996) 42 Cal.App.4th 628, 659, disapproved on other grounds [quotation marks and emphasis omitted].)

#### Lishner Motion

Lishner seeks to recover attorney's fees for two attorneys who worked on this matter. Their hourly rates are as follows: (1) Rinat Klier Erlich: \$800/hour; and (2) Jennie Raphelt: \$500/hour.

Erlich attests to each attorney's legal experience and the reasonableness of their rates. (Erlich Decl., p. 13:7-28.) The Court finds, based on the submitted declarations and the Court's own experience, that the requested hourly rates are reasonable for attorneys with their experience and in this area of law.

#### Reasonable Hours Incurred

Lishner requests attorneys' fees and costs in the amount of \$28,795.21, comprised of \$27,420.00 in attorney's fees, plus \$1,375.21 in costs.

Erlich billed 7.4 hours consisting of: (1) 2.2 hours to review the complaint, interview the client, and decide on strategy throughout the preparation of the anti-SLAPP motion; (2) 3.8 hours to review and finalize the anti-SLAPP motion and prepare for filing; and (3) 1.2 hours to review documents and communicate with Plaintiff in attempts to meet and confer to have Plaintiff dismiss Moving Party prior to resolution of motion. (Erlich Decl., ¶ 21.A.)

Time spent meeting and conferring regarding dismissal does not directly pertain to the anti-SLAPP motion. Accordingly, the Court will reduce the requested hours by 1.2 hours, in the amount of \$960.00.

Raphelt billed 40 hours consisting of: (1) 20.6 hours to draft the anti-SLAPP motion; (2) 3.9 hours to multiple non-oppositions in support of the anti-SLAPP motion; (3) 2.4 hours to review and analyze Plaintiff's exhibits and eventual opposition to anti-SLAPP; (4) 9.7 hours to prepare for and attend all hearings regarding the anti-SLAPP; (5) 2.5 hours for review/analysis of the attorney fees and drafting the fee motion; (6) 5 hours for summary/preparation of the breakdown; (7) .4 hours for preparing the worksheet for the post-dismissal memorandum of costs; and (8) an anticipated 3.0 hours to review the opposition, research and draft the reply brief for the instant fee motion, and prepare for and appear at the oral argument. (Erlich Decl., ¶ 21.B-C.)

The Court finds that 3.9 hours to draft the non-opposition notices is overstated, in particular because the notices are largely duplicative of each other. The Court thus reduces the requested hours by 1.9 hours, in the amount of \$950.00. Moreover, as no opposition or reply was filed, the Court will reduce the requested hours by an additional 3.0 hours, in the amount of \$1,500.00.

The Court finds that the 9.7 hours to attend all hearings and to prepare for such hearings is excessive. The Court thus reduces the hours by 6.0 hours in the amount of \$3,000.00.

The Court finds that 20.6 hours to draft the Anti-SLAPP motion is excessive. The Court reduces the requested hours by 5.0 hours in the amount of \$2,500.00.

In sum, the Court reduces the requested 50.4 hours by 17.10 hours, or \$8,910.00, resulting in an award of 33.3 hours and attorneys' fees and costs totaling \$19,885.21.

#### Mazenod Motion

Mazenod seeks to recover attorney's fees for two attorneys who worked on this matter. Their hourly rates are as follows: (1) Jonathan P. Cyr: \$235/hour; and (2) Ana Park vonSimun: \$220/hour.

Counsel asserts that the rates are reasonable, but provides no description of the attorneys' legal experience or other explanation or justification for the requested rates. (vonSimun Decl., ¶ 20.) Nonetheless, based on the Court's own experience, the Court finds that the requested hourly rates are reasonable.

#### Reasonable Hours Incurred

Mazenod's counsel asserts that "[o]ur firm has spent approximately 73 hours on this case and anticipates spending an additional 3.0 hours to review the opposition, research and draft the reply brief for the instant fee motion, and prepare for and appear at the oral argument, for a total of 76 hours." Mazenod does not describe how the 73 hours were allocated, including how much time Cyr spent on the anti-SLAPP motion or how much time vonSimun spent. The Court is unable to determine whether the hours claimed were reasonably incurred or whether the hours claimed are attributable to work on the anti-SLAPP motion. 73 hours of attorney time for a single anti-SLAPP motion is excessive. Moreover, upon review, the anti-SLAPP motion filed by Mazenod is largely a carbon copy of the anti-SLAPP motion filed by Lishner's counsel approximately four months prior. In light of the substantial overlap between the two motions, the Court finds the assertion that two attorneys incurred 73 hours on the anti-SLAPP motion and supporting tasks unreasonable.

The Court will thus award 8.0 hours to draft the anti-SLAPP motion, 3.0 hours to review the opposition, prepare a reply and appear at the hearing on the anti-SLAPP motion, 4.0 hours to draft the instant fee motion, and 1.0 hour to attend the hearing, totaling 16 hours at \$235.00 per hour for attorneys' fees of \$3,760, plus \$1,634.99 in costs, for a total award of \$5,394.99.

#### RULING:

Defendant Lawrence Lishner's Motion for Attorney Fees is GRANTED, in part. Plaintiff is ordered to remit \$19,885.21 to Defendant Lisher within 20 days of this order.

Defendant Pierre Mazenod's Motion for Attorney Fees is GRANTED, in part. Plaintiff is ordered to remit \$5,394.99 to Defendant Mazenod within 20 days of this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

#### VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting [www.lacourt.ca.gov](http://www.lacourt.ca.gov) to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.